



had been effectively rejected by the electorate in Karnataka. In these circumstances it was submitted that the appointment by the Central government of a commission of inquiry against the chief minister was only to discredit the ruling party in Karnataka. Not impressed with this plea, a bench of seven Supreme Court judges dismissed Karnataka's suit by a majority (6:1). Their view was that there was a continuing need for Central supervision into state affairs. Justice Kailasam J. dissented. He held that the Union government had no jurisdiction or authority to constitute a commission of inquiry to examine the alleged misconduct of a chief minister. He said that "taking into account the history of the development of the Indian Constitution and its scheme, the Central government notification impinged on the right of the state to function in its limited sphere". But he was in a minority of one;

Article 356 was intended only as a residual provision to preserve the unity of India; it was meant to be used in times of grave constitutional crises. But it was the first invocation of Article 356 that created a precedent—some would say an unhealthy one. It was way back in 1951. Jawaharlal Nehru (then prime minister) put pressure on the Congress Parliamentary Board and compelled Chief Minister Gopichand Bhargava, who enjoyed majority support in the East Punjab Legislature, to resign. Rajaji, then home minister, informed the President that "after Bhargava resigns, no new ministry will be constituted in the state and then the governor will submit a report that it is not possible to run the administration under the Constitution and the President would then have to take over the administration". This is how it has been done since then, not once, but more than 95 times. The Supreme Court's recent



BIRTH OF A REPUBLIC: Jawaharlal Nehru signing the Constitution of India

his too was a voice in the judicial wilderness.

Fourth. There has been frequent use (some would say misuse) of a constitutional provision, deliberately included to safeguard the "integrity" of the nation, namely, Article 356. The chief executive authority of the state is the governor, who is also the head of the state legislature. But he owes his appointment solely to the Centre, and holds office during the pleasure of the President, a constitutional euphemism for the prime minister's pleasure. The governor has to constitutionally act in accordance with the advice given to him by the state's council of ministers, but he is also the Union's 'eyes-and-ears', its representative to determine whenever the government of the state "cannot be carried on in accordance with the provisions of the Constitution" and to so report to the President. On receipt of such a report, the President (i.e. the Central government) can assume to himself all the functions of the government of the state and declare that all the legislative powers of the state would be exercisable by and under the authority of Parliament.

Constitution-making is not a one-time exercise. It is a continuous process; it keeps getting constantly enriched by the experience of the nation.

decision in the Bihar Assembly Dissolution Case (2006) has perhaps checked this trend, but the verdict against the dissolution was just 3:2.

Fifth. After having authoritatively held in a Constitution bench decision in Shamsher Singh (1974) that the governor must always act in accordance with the advice of his council of ministers, the highest court has backtracked on this ruling; It has permitted the governor of a state to act on his own as the state's "moral custodian" against an elected chief minister, as in Antulay's case (1982). A later judgement of a Constitution bench of the court has endorsed this view. In 2004, the court upheld Governor Bhai Mahavir's unilateral grant of sanction for the prosecution of the then chief minister of Madhya Pradesh. To counter the canker of corruption, the contours of governors' powers have been enlarged by judicial innovation. But Rashtrapati Bhavan has not countenanced this approach regarding the powers of the President. One of the last orders passed by President Venkataraman before he demitted office in July 1992, was on a petition which prayed for sanction of the President for prosecuting the then minister for

